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DEFENDANTS' MOTIONS FOR PROTECTIVE ORDER REGARDING PLAINTIFF'S WRITTEN DISCOVERY

Motions filed on March 27, 2026 and April 7, 2026. Joinder
filed on June 15, 2026.

MOVING PARTY: Defendants Doron Shauly, Alon West Hills, LLC,
Iris Shapiro, Alon Investment LLC, and Walter Florida

RESPONDING PARTY: Plaintiff Elly-Joy Shalomé Kaushansky

NOTICE: OK.

RELIEF REQUESTED: Defendants seek protective orders excusing
them from responding to Plaintiff's written discovery, or requiring Plaintiff
to reduce the number of requests.

RULING: Continued. Defendants Iris Shapiro, Alon Investment
LLC, and Walter Florida for protective order relief via joinder is denied.

BACKGROUND

Plaintiff Elly-Joy Shalomé Kaushansky filed the operative First Amended Complaint on November 17, 2025 against Defendants Alon West Hills, LLC, Alon Investments, LLC, Iris Shapiro, Doron Shauly, Walter Florida, and Does 1 through 50, asserting causes of action for (1) breach of contract, (2) breach of implied warranty of habitability and tenantability, (3) collection of rent on substandard dwelling, (4) breach of implied warranty of quiet enjoyment, (5) negligence based on habitability, (6) private nuisance, (7) retaliatory acts, (8) constructive eviction, (9) assault, (10) battery, (11) negligence based on personal injury, (12) intentional infliction of emotional distress, (13) negligent infliction of emotional distress, (14) harassment under Los Angeles Municipal Code section 45.33, and (15) equitable estoppel and constructive fraud.

Defendant Shauly filed a motion for protective order on March 27, 2026, supported by the declaration of Nhutruc H. Do and exhibits. Plaintiff filed a corrected opposition on May 15, 2026, supported by her declaration and exhibits. Defendant Shauly filed a reply on May 19, 2026.

Defendant Alon West Hills, LLC filed a motion for protective order on April 7, 2026, supported by the declaration of Tiffanie Q. Spivey and exhibits. Plaintiff filed an opposition on June 15, 2026, supported by her declaration and exhibits.

Defendants Iris Shapiro, Alon Investment LLC, and Walter Florida filed a joinder on June 15, 2026, supported by the declaration of Michael J. Early and exhibits. Plaintiff filed an opposition to the joinder on June 22, 2026, supported by her declaration and exhibits.

LEGAL STANDARD

A party seeking a protective order must move promptly and must support the motion with a meet-and-confer declaration. (Code Civ. Proc., §§ 2030.090, subd. (a), 2031.060, subd. (a), 2033.080, subd. (a).) In general, the moving party bears the burden of showing good cause for the protective order sought. (Fairmont Ins. Co. v. Superior Court (2000) 22 Cal.4th 245, 255.) Good cause requires specific facts showing undue burden, oppression, or other grounds for protection. (Goodman v. Citizens Life & Casualty Ins. Co. (1967) 253 Cal.App.2d 807, 819-820.)

A party may propound more than 35 specially prepared

interrogatories if the party attaches a declaration under Code of Civil Procedure section 2030.050 and the greater number is warranted by the complexity or quantity of the issues, the financial burden of oral deposition, or the expedience of written discovery to allow inquiry, investigation, or review of files or records. (Code Civ. Proc., § 2030.040, subd. (a)(1)-(3).) If the responding party seeks a protective order on the ground that the number is unwarranted, “the propounding party shall have the burden of justifying the number of these interrogatories.” (Id., subd. (b), emphasis added.)

The same burden applies to requests for admission exceeding 35 matters that do not relate to the genuineness of documents. A party may request a greater number if the party attaches a declaration under Code of Civil Procedure section 2033.050 and the greater number is warranted by the complexity or quantity of the issues. (Code Civ. Proc., § 2033.040, subd. (a).) If the responding party seeks a protective order on the ground that the number is unwarranted, “the propounding party shall have the burden of justifying the number of requests for admission.” (Id., subd. (b).)

For inspection demands, the Court may also restrict the frequency or extent of discovery if “[t]he discovery sought is unreasonably cumulative or duplicative,” or if “[t]he selected method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.” (Code Civ. Proc., § 2019.030, subd. (a)(1)-(2).)

The Court may order that the set or particular requests need not be answered, that the number of interrogatories or admission requests is unwarranted, or that the time to respond is extended. (Code Civ. Proc., §§ 2030.090, subd. (b)(1)-(3), 2033.080, subd. (b)(1)-(3).) For inspection demands, the Court may make any order that justice requires to protect a party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. (Code Civ. Proc., § 2031.060, subd. (b).)

DISCUSSION

Defendant Shauly and Defendant Alon West Hills, LLC

Defendant Shauly and Defendant Alon West Hills timely moved for protective orders. Defendant Shauly filed his motion on March 27, 2026, and Defendant Alon West Hills filed its motion on April 7, 2026. Both motions were

filed before the asserted April 15, 2026 response deadline.

Plaintiff previously served Defendant Shauly with Form Interrogatories, 35 Special Interrogatories, 47 Requests for Production, and 35 Requests for Admission. Defendant Shauly states he responded in July 2025. (Do Decl., ¶¶ 2-3.) Plaintiff then served Defendant Shauly with 382 Special Interrogatories, 269 Requests for Production, and 280 Requests for Admission, for a total of 931 additional requests. (Do Decl., ¶ 4.)

Plaintiff previously served Defendant Alon West Hills with Form Interrogatories, 35 Special Interrogatories, 50 Requests for Production, and 35 Requests for Admission. Defendant Alon West Hills states it responded on June 18, 2025. (Spivey Decl., ¶¶ 3-4.) Plaintiff then served Defendant Alon West Hills with 382 Special Interrogatories, 269 Requests for Production, and 127 Requests for Admission, for a total of 778 additional requests. (Spivey Decl., ¶ 5.)

For the Special Interrogatories and Requests for Admission exceeding 35, Plaintiff served declarations under Code of Civil Procedure sections 2030.050 and 2033.050. Plaintiff relies on the complexity of the case, the number of Defendants and causes of action, the volume of prior defense discovery, and alleged deficiencies in prior responses. That showing may support targeted follow-up discovery. On the current record, it does not explain why the March 13, 2026 discovery should be answered as served.

The record also reflects overlap and burden concerns. Defendant Shauly identifies overlap in requests concerning physical contact, striking, whether Plaintiff fell or was knocked down, rent notices, three-day notices, law enforcement communications, insurance information, and water-service interruptions. (Mot., pp. 5-7; Do Decl., ¶ 8.) Plaintiff declined to reduce the number of requests or agree to an extension, and maintained that the discovery was not repetitive or duplicative. (Do Decl., ¶¶ 9-10, Ex. C; Kaushansky Decl., ¶¶ 22-25.) Defendant Alon West Hills similarly attempted to meet and confer regarding the volume and burden of the March 13, 2026 discovery, but Plaintiff did not agree to reduce the requests. (Spivey Decl., ¶¶ 9-11.)

The motions were filed when trial was set for July 20, 2026 and the nonexpert discovery cutoff was June 20, 2026. Defendants contend, in part, that the volume of discovery requested by Plaintiff could not reasonably be answered within the statutory response period and before the then-existing

discovery cutoff. Trial has now been continued. The continuance gives the parties an opportunity to narrow the discovery before the Court decides whether protective relief is necessary.

The Court will therefore continue Defendant Shauly's and Defendant Alon West Hills' motions for one further direct meet and confer. Pending the continued hearing, Defendant Shauly and Defendant Alon West Hills are not required to respond to the March 13, 2026 discovery as served.

In light of the large volume of discovery served, the Court expects Plaintiff to cooperate meaningfully in reducing, consolidating, or withdrawing requests where appropriate. The Court also expects Defendants to meaningfully meet and confer, and to identify the remaining requests or categories they contend are cumulative, duplicative, overbroad, or unduly burdensome. The parties must file a joint statement narrowing any remaining dispute, as ordered below.

Joinder by Defendants Iris Shapiro, Alon Investment LLC, and Walter Florida

The joinder by Defendants Iris Shapiro, Alon Investment LLC, and Walter Florida is denied.

Defendants Iris Shapiro, Alon Investment LLC, and Walter Florida each seek affirmative protective-order relief. Early identifies 382 Special Interrogatories, 269 Requests for Production, and 308 Requests for Admission to Alon Investment LLC; 382 Special Interrogatories, 269 Requests for Production, and 172 Requests for Admission to Shapiro; and 382 Special Interrogatories, 269 Requests for Production, and 243 Requests for Admission to Florida. (Early Decl., ¶ 3.)

Defendants Iris Shapiro, Alon Investment LLC, and Walter Florida joinder was not brought as a timely noticed motion for protective order by those responding parties. It also is not supported by a declaration showing a reasonable and good-faith attempt to meet and confer regarding the discovery directed to those parties. (Code Civ. Proc., §§ 2016.040, 2030.090, subd. (a), 2031.060, subd. (a), 2033.080, subd. (a).)

Accordingly, the protected order relief requested as to Defendants Iris Shapiro, Alon Investment LLC, and Walter Florida is DENIED WITHOUT

PREJUDICE. The Court will permit Defendants to renew these arguments on a properly noticed motion, and meet and confer declaration.

CONCLUSION

The motions for protective order filed by Defendant Doron Shauly and Defendant Alon West Hills, LLC are CONTINUED to September 15, 2026, at 8:30 a.m. in Department F-46.

Pending the continued hearing, Defendant Shauly and Defendant Alon West Hills are not required to respond to the March 13, 2026, discovery as presently propounded.

No later than August 14, 2026, Plaintiff shall serve upon Defendant Shauly and Defendant Alon West Hills, LLC a written identification of the discovery requests Plaintiff elects to withdraw, consolidate, narrow, or maintain.

No later than August 28, 2026, Plaintiff and Defendants Shauly and Alon West Hills, LLC, through counsel as applicable, shall personally meet and confer in good faith by telephone, videoconference, or in person regarding the remaining disputed discovery. The exchange of emails or correspondence alone shall not satisfy this requirement.

No later than five (5) court days before the September 15, 2026 hearing, the parties shall file a joint statement, not to exceed seven (7) pages, setting forth:

(1) the discovery requests Plaintiff withdraws, consolidates, narrows, or maintains;

(2) the discovery requests or categories on which the parties have reached agreement;

(3) for each remaining disputed request or category, Defendants' specific basis for contending the request remains cumulative, duplicative, overbroad, disproportionate, unduly burdensome, or otherwise objectionable;

(4) the parties' agreed response deadline for any discovery

remaining after the meet-and-confer process or, if no agreement is reached, each side's proposed response deadline; and

(5) a certification stating the date, manner (telephone, videoconference, or in person), and participants in the meet-and-confer conference, and confirming that the parties and/or their counsel personally met and conferred in good faith in an effort to resolve or narrow the disputes. The exchange of emails or correspondence alone shall not satisfy this requirement. No new legal arguments shall be included except as necessary to explain the disputes remaining after the meet-and-confer process.

The joinder filed by Defendants Iris Shapiro, Alon Investment LLC, and Walter Florida is DENIED WITHOUT PREJUDICE.

The Court reserves the requests for sanctions relating to Defendant Shauly's and Defendant Alon West Hills' motions until the continued hearing.

The moving parties are ordered to give notice.